



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

JUN 14 1993

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 11028

EXPIRATION DATE: July 3, 1993

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Allied Signal Incorporated, Morristown, New Jersey
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of a DOT Specification 112S400W tank car, containing a Class 8 material, meeting all DOT requirements except that the tank car has a defective safety relief valve which is equipped with a chlorine "C" kit. This exemption provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2); 173.31(b)(3); 179.100-12(c); and 179.100-13.
5. BASIS. This emergency exemption is based on Allied Signal Incorporated's application of June 3, 1993, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials description/proper shipping name | Hazard Class/ Division | Identification number | Packing Group |
|------------------------------------------------------|------------------------|-----------------------|---------------|
| Hydrogen fluoride, anhydrous                         | 8                      | UN 1052               | I             |

7. PACKAGING(S) and SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT Specification 112S400W tank car, GATX 44793, with a defective safety relief valve. The tank car has been equipped with a chlorine "C" kit to prevent the emission of hydrogen fluoride vapors.
- b. TESTING - The safety relief valve for tank car, GATX 44793, must be retested prior to the tank car being refilled.

JUN 14 1993

Continuation of DOT-E 11028

Page 2

c. MARKING - Tank car, GATX 44793, must be marked DOT-E 11028 in four inch letters on a contrasting background above the DOT Specification number.

d. The manway protective housing cover, while opened, must be chained or otherwise fastened so that it cannot change position during transportation.

8. SPECIAL PROVISIONS.

a. Shipment of tank car GATX 44793 is authorized from Allied Signal Incorporated, Baton Rouge, Louisiana, to Allied Signal Incorporated, Geismar, Louisiana, a distance of approximately 30 miles utilizing the most direct route via the Illinois Central Railroad Company.

b. Persons who receive the tank car covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: Not as a condition of this exemption.

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- Any use or application of this exemption, including display of its number, when the exemption has expired or it is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
- Registration required by 49 CFR 107.601 et seq., when applicable.

12. REPORTING REQUIREMENTS.

a. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

JUN 14 1993

Continuation of DOT-E 11028

Page 3

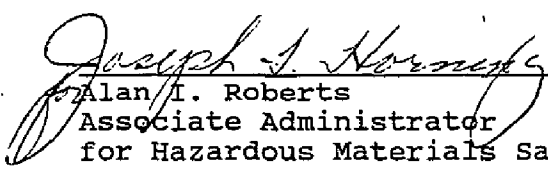
b. The Federal Railroad Administration (FRA) is to be notified if any unusual incident such as derailment or exterior tank car damage, occurs during the movement by contacting the:

Federal Railroad Administration  
Office of Safety, RRS-12  
400 Seventh Street, S.W.  
Washington, D.C. 20590  
(202) 366-9178 or 366-0549

Issued at Washington, D.C.:

JUN 14 1993

(DATE)

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA